

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Filed on

-----X
WILLIAM MARCANO,

Index No.

Plaintiff,

Plaintiff designates Queens
County as place of trial

-against-

SUMMONS

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER DAVID
LOSTAGLIO – Tax ID 966676, SERGEANT DON
MARTIN ATIENZA – Tax ID 952429, POLICE
OFFICER MICHAEL ALMEYDA – Tax ID
968224, POLICE OFFICER ANTHONY BOCCIO
– Tax ID 961649, POLICE OFFICER JAMES
MCCABE – Tax ID 956070, and POLICE
OFFICER KEITH SERPICO – Tax ID 955470,

The basis of venue is the place of
the occurrence of the tort.

Plaintiff resides at:
1034 Southern Drive
Franklin Square, NY 11010

County of Nassau

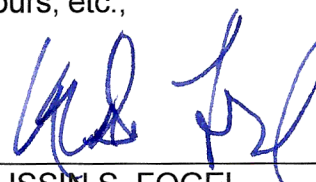
Defendants.
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: New York, New York
September 15, 2021

Yours, etc.,



NUSSIN S. FOGEL
Attorney for Plaintiff
299 Broadway - Suite 1818
New York, New York 10007
(212) 385-1122

Defendants' Addresses:

CITY OF NEW YORK

1 Centre Street
New York, NY 10007

NEW YORK POLICE DEPARTMENT

One Police Plaza
New York, NY 10007

POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676

c/o NEW YORK POLICE DEPARTMENT

One Hundredth (100th) Precinct
92-24 Rockaway Beach Blvd
Rockaway Beach, NY 11693

SERGEANT DON MARTIN ATIENZA – Tax ID 952429

c/o NEW YORK POLICE DEPARTMENT

One Hundredth (100th) Precinct
92-24 Rockaway Beach Blvd
Rockaway Beach, NY 11693

POLICE OFFICER MICHAEL ALMEYDA – Tax ID 968224

c/o NEW YORK POLICE DEPARTMENT

One Hundredth (100th) Precinct
92-24 Rockaway Beach Blvd
Rockaway Beach, NY 11693

POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649

c/o NEW YORK POLICE DEPARTMENT

One Hundredth (100th) Precinct
92-24 Rockaway Beach Blvd
Rockaway Beach, NY 11693

POLICE OFFICER JAMES MCCABE – Tax ID 956070

c/o NEW YORK POLICE DEPARTMENT

One Hundredth (100th) Precinct
92-24 Rockaway Beach Blvd
Rockaway Beach, NY 11693

POLICE OFFICER KEITH SERPICO – Tax ID 955470

c/o NEW YORK POLICE DEPARTMENT

One Hundredth (100th) Precinct
92-24 Rockaway Beach Blvd
Rockaway Beach, NY 11693

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
WILLIAM MARCANO,

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER DAVID
LOSTAGLIO – Tax ID 966676, SERGEANT DON
MARTIN ATIENZA – Tax ID 952429, POLICE
OFFICER MICHAEL ALMEYDA – Tax ID 968224,
POLICE OFFICER ANTHONY BOCCIO – Tax ID
961649, POLICE OFFICER JAMES MCCABE – Tax ID
956070, and POLICE OFFICER KEITH SERPICO –
Tax ID 955470,

Defendants.
-----X

Plaintiff, WILLIAM MARCANO, for his Verified Complaint by his attorney, NUSSIN S.
FOGEL, respectfully alleges as follows:

1. That, at all times hereinafter mentioned, plaintiff herein was and still is a resident of the County of Nassau, City and State of New York.
2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized under the laws of the State of New York.
3. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, was and still is a municipal agency of defendant, CITY OF NEW YORK.
4. That, at all times hereinafter mentioned, defendant, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, was and still is an employee of defendant, CITY OF NEW YORK.
5. That, at all times hereinafter mentioned, defendant, POLICE OFFICER

DAVID LOSTAGLIO – Tax ID 966676, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

6. That, at all times hereinafter mentioned, defendant, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, was and still is an employee of defendant, CITY OF NEW YORK.

7. That, at all times hereinafter mentioned, defendant, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

8. That, at all times hereinafter mentioned, defendant, POLICE OFFICER MICHAEL ALMEYDA – Tax ID 968224, was and still is an employee of defendant, CITY OF NEW YORK.

9. That, at all times hereinafter mentioned, defendant, POLICE OFFICER MICHAEL ALMEYDA – Tax ID 968224, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

10. That, at all times hereinafter mentioned, defendant, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, was and still is an employee of defendant, CITY OF NEW YORK.

11. That, at all times hereinafter mentioned, defendant, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

12. That, at all times hereinafter mentioned, defendant, POLICE OFFICER JAMES MCCABE – Tax ID 956070, was and still is an employee of defendant, CITY OF NEW YORK.

13. That, at all times hereinafter mentioned, defendant, POLICE OFFICER

JAMES MCCABE – Tax ID 956070, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

14. That, at all times hereinafter mentioned, defendant, POLICE OFFICER KEITH SERPICO – Tax ID 955470, was and still is an employee of defendant, CITY OF NEW YORK.

15. That, at all times hereinafter mentioned, defendant, POLICE OFFICER KEITH SERPICO – Tax ID 955470, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

16. That, plaintiff herein has complied with all of the conditions precedent to the bringing of the within action and more particularly, on or about the 26th day of October, 2020 claimant timely served a Notice of Claim on defendants pursuant to the toll in place by New York State Executive Order 202.8 and its progeny and was assigned claim number 202PI026719 and on the 22nd day of December, 2021 claimant timely served an Amended Notice of Claim on defendants pursuant to the toll in place by New York State Executive Order 202.8 and its progeny; that, more than thirty (30) days have elapsed since said Notices of Claim have been served; that said claims remain unadjusted and defendants herein have failed and refused to make any adjustments thereto; that the within action has been commenced within one year and ninety days of the date of the occurrence; and on August 10, 2021 a statutory hearing was held on the within claim.

17. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the One Hundredth (100th) Precinct, 92-24 Rockaway Beach Blvd, Rockaway Beach, NY 11693.

18. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the One Hundredth (100th) Precinct, 92-24 Rockaway Beach Blvd,

Rockaway Beach, NY 11693.

19. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the One Hundredth (100th) Precinct, 92-24 Rockaway Beach Blvd, Rockaway Beach, NY 11693.

20. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the One Hundredth (100th) Precinct, 92-24 Rockaway Beach Blvd, Rockaway Beach, NY 11693.

21. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the One Hundredth (100th) Precinct, 92-24 Rockaway Beach Blvd, Rockaway Beach, NY 11693.

22. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the One Hundredth (100th) Precinct, 92-24 Rockaway Beach Blvd, Rockaway Beach, NY 11693.

23. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the One Hundredth (100th) Precinct, 92-24 Rockaway Beach Blvd, Rockaway Beach, NY 11693.

24. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the One Hundredth (100th) Precinct, 92-24 Rockaway Beach Blvd, Rockaway Beach, NY 11693.

25. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

26. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the Queens County Central Booking Facility located at 125-01

Queens Blvd Kew Garden, NY.

27. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

28. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

29. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

30. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

31. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

32. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

33. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Rikers Island Correctional Facility located in East Elmhurst, NY.

34. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the Rikers Island Correctional Facility located in East Elmhurst, NY.

35. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK,

operated the Rikers Island Correctional Facility located in East Elmhurst, NY.

36. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the Rikers Island Correctional Facility located in East Elmhurst, NY.

37. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the Rikers Island Correctional Facility located in East Elmhurst, NY.

38. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the Rikers Island Correctional Facility located in East Elmhurst, NY.

39. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the Rikers Island Correctional Facility located in East Elmhurst, NY.

40. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the Rikers Island Correctional Facility located in East Elmhurst, NY.

41. That, on or about July 16, 2020 at approximately 7:00 a.m. plaintiff herein was lawfully within the premises known as 146 Beach 59th Street, Apartment #618, Arverne, NY.

42. That, on or about July 16, 2020 at approximately 7:00 a.m. plaintiff herein was unlawfully stopped, detained and questioned within said premises, without reason or just cause, defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470.

43. That, on or about July 16, 2020 at approximately 7:00 a.m., plaintiff herein remained stopped, detained, falsely arrested and imprisoned, without reason or just cause, and was then transported by defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, to the One Hundredth (100th) Precinct, 92-24 Rockaway Beach Blvd, Rockaway Beach, NY 11693.

44. That, plaintiff herein remained unlawfully arrested and imprisoned within the One Hundredth (100th) Precinct by defendants herein until he was transported to St. John's Episcopal Hospital, 327 Beach 19th St, Far Rockaway, NY 11691.

45. That, plaintiff herein remained unlawfully arrested and imprisoned within St. John's Episcopal Hospital by defendants herein until July 18, 2020 when he was then transported to the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY where he remained falsely arrested and imprisoned and was thereafter unlawfully charged and maliciously prosecuted by defendants herein.

46. That, plaintiff herein was thereafter transferred to the Rikers Island Correctional Facility located in East Elmhurst, NY by defendants herein and remained falsely arrested and imprisoned, unlawfully charged and maliciously prosecuted by defendants herein until his release therefrom on or about September 10, 2020.

47. That, plaintiff herein continues to be unlawfully charged and maliciously prosecuted by defendants herein.

AS AND FOR A FIRST CAUSE OF ACTION

48. That, plaintiff herein repeats, reiterates and re-alleges each and every

allegation as set forth in paragraphs "1" through "47" as if the same had been fully set forth herein.

49. That, on or about July 16, 2020 at 7:00 a.m. plaintiff herein was negligently, carelessly and recklessly denied access to or provided his prescribed medication for an unreasonable amount of time.

50. That, defendants were aware of plaintiff's need for this medication.

51. That, defendants disregarded their duty to protect plaintiff herein by failing to provide this medication for an unreasonable amount of time despite their knowledge that doing so would cause plaintiff harm.

52. That, as a result of this denial to access to or provide his necessary medication, plaintiff was caused to be hospitalized.

53. That, defendants herein were negligent in providing adequate care, safety and protection to plaintiff herein by denying access to or providing plaintiff with necessary medication to maintain his health and well-being; were negligent in their ownerships, operation, maintenance, control, supervision and security of the aforesaid premises and facilities and their employees thereat; in causing and allowing plaintiff to become ill and injured due to their failure to provide plaintiff with his needed medication, despite knowledge that doing so would cause such illness and injury; in failing or inadequately implementing a safety plan or protocol so as to protect plaintiff herein; in failing or inadequately caring for plaintiff with a known medical condition; and negligently, carelessly and recklessly failing to take all and reasonable necessary precautions to prevent the occurrence herein.

54. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants herein in their ownership, operation, maintenance, control, supervision and security of the aforesaid premises and facilities and their employees thereat.

55. That, the within action for damages for personal injuries falls into one or more of the exceptions as set forth in CPLR §1602 and the limitations and liabilities as set forth therein do not apply.

56. That, as a result of the aforesaid occurrence, plaintiff herein suffered serious and severe injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts

AS AND FOR A SECOND CAUSE OF ACTION

57. That, plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "56" as if the same had been fully set forth herein.

58. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, were negligent in the hiring, supervision, training and retention of defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE".

59. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, knew or should have known that, prior to, at and subsequent to the time when defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, engaged defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, that they were persons of incompetence and indifference; that they had previously unlawfully and without just cause stopped, detained, questioned, falsely arrest, imprisoned, maliciously prosecuted and/or denied access to medications to persons

under similar circumstances claimed herein; that they had negligently and carelessly denied persons with known medical conditions access to needed medications; and were known by general reputation to be incompetent and indifferent.

60. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, failed and neglected to make any, or appropriate, inquiries with respect to the competence, temperament and character of their employees the defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, when these defendant police officers were employed and engaged by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

61. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in the hiring, supervision, training and retention of defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470.

62. That, by virtue of the aforesaid, plaintiff herein suffered serious and severe personal and emotional injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

63. Plaintiff herein, repeats, reiterates and re-alleges each and every allegation

as set forth in paragraphs "1" through "62" as if the same had been fully set forth herein.

64. That, at the aforesaid times and places defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, failed to protect plaintiff herein and unjustly, intentionally, unlawfully stopped, detained and falsely arrested plaintiff herein or caused plaintiff herein to be, become and remain falsely arrested.

65. That, defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, intentionally confined plaintiff; that, plaintiff herein was aware of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

66. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

67. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "66" as if the same had been fully set forth herein.

68. That, at the aforesaid times and places defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER

ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, failed to protect plaintiff herein and unjustly, intentionally, unlawfully and falsely imprisoned plaintiff herein or caused plaintiff herein to be, become and remain falsely imprisoned.

69. That, defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, intended to confine plaintiff herein; plaintiff herein was conscious of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

70. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

71. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs “1” through “70” as if the same had been fully set forth herein.

72. That, at the aforesaid times and places plaintiff herein was maliciously prosecuted by defendants, who under the facts available did not have an objective, good faith belief that the plaintiff was involved in any criminal acts, guilty of any wrong-doing or posed a danger.

73. That, defendants herein caused criminal proceedings to be commenced against the plaintiff herein; that said criminal proceedings were thereafter terminated in favor of the plaintiff herein; that, the criminal proceedings lacked probable cause; and that, the

criminal proceedings were brought out of actual malice.

74. By virtue of the aforesaid, the plaintiff herein was caused to sustain serious and severe personal injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

75. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "74" as if the same had been fully set forth herein.

76. That, at the aforementioned times and places, plaintiff herein was unlawfully and without just cause stopped, questioned, detained, falsely arrest and imprisoned, maliciously prosecuted, and/or denied access to or provided needed medication by defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470.

77. That, defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

78. That, the improper and unlawful stopping, questioning, detaining, false arrest and imprisonment, malicious prosecution, and/or denial of access to needed medication of plaintiff herein by defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676,

SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, violated plaintiff's civil rights as afforded under the Constitutions and laws of the United States and the State of New York.

79. That, the acts of defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, were done under the color of law and under the color of authority to be executed justly by defendants herein.

80. That, the failure of defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, in the exercise of their functions and their failure to enforce the laws of the United States and of the City and State of New York were carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the City of New York which include plaintiff herein.

81. That, the unlawful stopping, questioning, detaining, false arrest and imprisonment, malicious prosecution and/or denial of access to necessary medication of plaintiff herein by defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL

ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures; the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law; the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

82. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

83. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "82" as if the same had been fully set forth herein.

84. That, at the aforementioned times and places, plaintiff herein was improperly and unlawfully stopped, questioned, detained, falsely arrested and imprisoned, maliciously prosecuted and/or denied access to needed medication by defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, without just cause or provocation.

85. That, defendants, POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

86. That, the improper and unlawful stopping, questioning, detaining, false arrest and imprisonment, malicious prosecution and/or denial of access to needed medication of plaintiff herein by defendants POLICE OFFICER DAVID LOSTAGLIO – Tax ID 966676, SERGEANT DON MARTIN ATIENZA – Tax ID 952429, POLICE OFFICER MICHAEL ALMEDYDA – Tax ID 968224, POLICE OFFICER ANTHONY BOCCIO – Tax ID 961649, POLICE OFFICER JAMES MCCABE – Tax ID 956070, and POLICE OFFICER KEITH SERPICO – Tax ID 955470, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures, the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law, the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

87. That, the acts of defendants herein were done under the color of law and under the color of authority to be executed justly by defendants herein.

88. That, the violation of plaintiff's constitutional rights were caused by the implementation of a custom, policy and/or official act of defendants, CITY OF NEW YORK

and NEW YORK POLICE DEPARTMENT and/or their deliberate indifference to the stopping, questioning, detaining, false arrest and imprisonment, malicious prosecution and denial of access to medication by their police officers of plaintiff herein and other individuals in similar circumstances as those of plaintiff herein.

89. That, the custom, policy and/or official act and/or deliberate indifference of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and their failure to enforce the laws of the United States and of the City and State of New York is evidenced by their reckless lack of cautious regard for the rights of citizens including plaintiff herein and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants herein.

90. That such acts, customs and/or policies and/or deliberate indifference thereto were and are known to the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, including to the supervisors, decision and policy makers of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

91. That the knowledge of said acts, customs and/or policies and/or deliberate indifference thereto by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is demonstrated by the thousands of lawsuits filed, litigated, settled and/or tried to verdict by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, that allege the unlawful stopping, questioning, detaining, false arrest and imprisonment, malicious prosecution, and/or denial of needed medication of individuals alleging incidents identical to those alleged herein as well as the continuous media coverage exposing and highlighting incidents identical to those alleged herein.

92. That, defendants, CITY OF NEW YORK and NEW YORK CITY DEPARTMENT OF CORRECTION, knew of said acts, customs and/or policies and/or were

deliberately indifferent thereto and did nothing to prevent and/or created and harbored conditions to permit and allow its police officers, including the named defendant-officers herein, to implement and carry out such acts, customs and/or policies with impunity and without regard for the rights afforded to all citizens including plaintiff herein.

93. That, the failure of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in enforcing the laws of the State of New York and the rights afforded under the Constitution of the United States and its implementation of these known policies, customs and/or practices and/or deliberate indifference thereto led, allowed or permitted the unlawful stopping, questioning, detaining, false arrest and imprisonment, malicious prosecution and/or denial of access to needed medication of plaintiff herein, thereby violating plaintiff's civil rights as well as the rights afforded under the Constitutions of the United States and the State of New York and defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is thereby liable to plaintiff herein under 42 U.S.C. §1983 and the Constitution of the United States.

94. That, as a result of the aforesaid violations of plaintiff herein constitutional rights, plaintiff herein has been damaged in a sum of money which exceeds the monetary jurisdiction of all lower courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a First Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Second Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Third Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fourth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower

courts, as and for a Fifth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Sixth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Seventh Cause of Action together with interest, costs and disbursements herein.

Dated: New York, NY
September 15, 2021

Yours, etc.,

NUSSIN S. FOGEL
Attorney for Plaintiff
Office & Post Office Address
299 Broadway, Suite 1818
New York, NY 10007
(212) 385-1122

ATTORNEY'S VERIFICATION

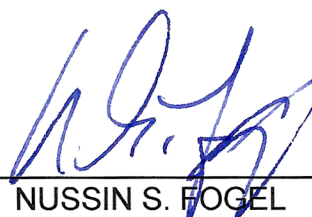
STATE OF NEW YORK)

COUNTY OF NEW YORK)

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am NUSSIN S. FOGEL, the attorney of record for the plaintiff herein, in the within action; I have read the foregoing **Complaint** and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.



NUSSIN S. FOGEL

I affirm that the foregoing statements
are true, under the penalties of perjury

Dated: New York, New York
September 15, 2021